

From: Owen R. officeexecutorowenrobertlewis@gmail.com 
Subject: Re: For Information and Public Interest Record Purposes — Turbine YSTW23 Blade Failure Incident
Date: 9 September 2026 at 7:13 am
To: Carsten Berberich carsten.berberich@chw.net.au
Cc: GovernanceandServicesTeam@chw.net.au, customer.enquiries@chw.net.au



Dear Mr Berberich,

Thank you for your response of 8 September 2026.

The Trustee notes that its correspondence of 28 August 2026 was expressly directed to **Mr Jeff Haydon, Managing Director**, and that you have responded in your capacity as **Head of Environmental Services**.

The Trustee is content to correspond with you concerning the substantive environmental matters raised. For clarity of the administrative record, however, could you please confirm whether your email of 8 September 2026 constitutes **Central Highlands Water's considered response to the correspondence directed to the Managing Director**, or whether a response from or on behalf of the Managing Director remains forthcoming?

The Trustee notes CHW's position that, in incidents of this kind occurring on private land outside CHW's direct control, CHW would escalate the issue to EPA as the responsible regulatory authority; that CHW has confirmed EPA is aware of the incident; and that any further action by CHW will be guided by advice provided by EPA and its technical specialists.

That clarification is noted.

There remains, however, an important distinction between **EPA's regulatory role concerning the blade failure and subsequent clean-up** and the specific clarification sought from CHW concerning **CHW's own functions and responsibilities**.

The Trustee's correspondence of 28 August 2026 did not ask CHW to assume EPA's regulatory role.

Rather, having provided CHW with the original footage on 29 May 2026 and subsequently the new footage recorded on 27 August 2026, the Trustee specifically sought clarification as to:

- whether CHW had assessed the Trustee's correspondence and original footage provided on 29 May 2026 and, if so, the outcome of that assessment;
- whether CHW had made or received any enquiries or information concerning the YSTW23 blade failure and subsequent debris recovery;
- whether the surrounding drainage environment and proximity of Lal Lal Reservoir had been considered by CHW;
- whether the condition visible in the 27 August 2026 footage warranted any inspection, assessment, monitoring, liaison or other action within CHW's functions; and
- alternatively, whether CHW considered that the incident did not engage any of its functions or responsibilities.

Those matters do not appear to have been substantively addressed by CHW's response of 8 September 2026.

In particular, CHW's confirmation that EPA is aware of the incident does not clarify whether **CHW itself has considered the information and footage provided from a catchment, source-water or water-quality perspective**.

That distinction is material because the Trustee specifically identified the apparent continuing presence of dispersed blade material in footage recorded 104 days after the incident, the surrounding drainage environment, intervening rainfall and the approximately 2.5 kilometre straight-line proximity of turbine YSTW23 to Lal Lal Reservoir.

As previously stated, the Trustee does **not** assert that blade material or any contaminant has entered a drainage line, waterway or Lal Lal Reservoir. The question is whether CHW itself has considered those circumstances insofar as they may engage CHW's own functions or responsibilities.

Further laboratory material

Since the Trustee's correspondence of 28 August 2026, further documentary material has also become available concerning a **separate turbine-blade processing activity undertaken at the Lal Lal Wind Farm in 2024**.

For completeness, the Trustee attaches a **redacted Certificate of Analysis dated 19 August 2024** concerning a sample identified by the laboratory as **"TURBINE"**.

The sample was provided to the Trustee with provenance associating it with powder from turbine-blade processing activity undertaken at the Lal Lal Wind Farm in 2024.

The Certificate records an **SVOC scan by GC-MS** and reports nine tentative compound identifications derived from a mass-spectral library search. The Trustee expressly notes the qualifications contained in the Certificate itself: the reported library matches are **tentative identifications**, definitive identification requires comparison with an authentic standard, and the Certificate does not provide quantitative concentrations for the tentatively identified compounds.

Importantly, the Trustee does **not** represent the tested 2024 sample as material from the 2026 YSTW23 blade failure, nor does the Certificate establish that any compound tentatively identified in the 2024 sample is present in the material visible in the 2026 footage.

The Certificate is provided because it constitutes additional documentary information concerning turbine-blade material associated with the Lal Lal Wind Farm and may assist CHW in independently determining whether the matters previously raised warrant consideration from a **catchment, source-water or water-quality perspective**.

For completeness, the Trustee also provided this laboratory material to **EPA Victoria on 4 September 2026** for EPA's independent environmental and regulatory consideration.

The Trustee makes no finding or conclusion from the laboratory material concerning contamination, environmental harm, water-quality impact, regulatory non-compliance or the 2026 YSTW23 incident.

Outstanding clarification

Against that further documentary background, rather than repeat each of the individual questions previously put, the Trustee would be grateful if CHW could now clarify the following limited point for the administrative record:

Has Central Highlands Water itself considered the information and footage provided by the Trustee, together with the further laboratory material now provided, including the apparent continuing presence of dispersed blade material, the surrounding drainage environment, intervening rainfall and proximity of Lal Lal Reservoir, from a catchment, source-water or water-quality perspective and, if so, what position has CHW reached?

If CHW has undertaken that consideration and concluded that the circumstances do **not** engage its functions or warrant any independent assessment, inspection, monitoring or other action by CHW, confirmation of that position would answer the Trustee's outstanding enquiry.

Conversely, if CHW has **not** itself undertaken that consideration and its position is instead that it will rely upon EPA and its technical specialists to determine whether any further action by CHW is required, the Trustee would be grateful if that could simply be confirmed.

The Trustee would also appreciate confirmation as to whether your response of 8 September 2026, together with any clarification provided in response to this email, should be treated as **Central Highlands Water's final institutional position on the matters referred to the Managing Director**.

Public documentary record

For completeness, the developing documentary record concerning the blade incident, including the 2024 blade-processing material and the 2026 YSTW23 incident record, is publicly available here:

<https://lalalwindfarmrecord.com.au/blade-removal-processing.html>

The public record is identified for CHW's information and provides convenient access to the underlying documentary chronology. It does not replace the material directly provided to CHW or the clarification sought in this correspondence.

This correspondence is provided for **administrative, public-interest and record purposes**. The Trustee makes no finding or allegation concerning contamination, environmental harm, water-quality impact or regulatory non-compliance.

The purpose of this clarification is simply to establish accurately **what consideration CHW itself has undertaken and the institutional position it has reached**.

Kind regards,

LEWIS TROJAN HORSE PTY LTD (ACN 693 680 509)
as Trustee of the **Owen Robert Inter Vivos Trust**

Laboratory-Analysis-Turbine-
Blade-Powder-Lal-Lal-2024-...
363 KB



On 8 Sep 2026, at 9:07 pm, Carsten Berberich <carsten.berberich@chw.net.au> wrote:

OFFICIAL

Dear LEWIS TROJAN HORSE PTY LTD

Thank you for your emails dated 28 August 2026 and 29 May 2026.

In incidents such as this, which occur on private land not under CHW's direct control, CHW would escalate the issue to the EPA as the responsible regulatory authority. In this instance we have noted that this had already been completed, and we have confirmed that the EPA is aware of this issue. Further action by CHW will be guided by advice provided by the EPA and its technical specialists.

Kind regards
Carsten



Carsten Berberich (He/Him)
Head of Environmental Services

Central Highlands Water
T: 03 5320 3246
E: carsten.berberich@chw.net.au

OFFICIAL

OFFICIAL

From: Owen R. <officeexecutorowenrobertlewis@gmail.com>
Sent: Friday, 28 August 2026 5:33 AM
To: TEAM - Governance & Risk <GovernanceandServicesTeam@chw.net.au>
Cc: Central Highlands Water - Customer Enquiries <customer.enquiries@chw.net.au>
Subject: Re: For Information and Public Interest Record Purposes — Turbine YSTW23 Blade Failure Incident

EXTERNAL EMAIL: This message originated from outside CHW. Use caution when opening attachments, following links and do not enter your CHW credentials when prompted unless you recognise the sender and know the content is safe.

Attention: Jeff Haydon — Managing Director

Dear Mr Haydon,

I write on behalf of **LEWIS TROJAN HORSE PTY LTD**, as Trustee of the **Owen Robert Inter Vivos Trust**, concerning the blade failure involving turbine YSTW23 at the Yendon section of the Lal Lal Wind Farm on 15 May 2026.

Earlier correspondence — 29 May 2026

On 29 May 2026, the Trustee wrote directly to Central Highlands Water concerning the incident and provided the original footage depicting the incident area following the blade failure.

That correspondence specifically identified matters concerning:

- debris containment and recovery activities;
- assessment of surrounding land, drainage lines or waterways;
- notification of relevant environmental or water authorities; and
- any associated environmental or public-health assessment process.

The Trustee asked whether the material altered or informed Central Highlands Water's understanding of the incident, was anticipated to give rise to further assessment or liaison, or warranted any further environmental, community or administrative information process.

No substantive response has been received from Central Highlands Water to that correspondence.

New footage — 27 August 2026

The Trustee has now received new footage recorded on 27 August 2026, supplied to the Beneficiary by a third party and subsequently provided to the Trustee for documentary and administrative purposes.

That new footage is attached to this correspondence.

It records the apparent condition of the YSTW23 incident area **104 days** after the blade failure and permits comparison with the original footage previously supplied to Central Highlands Water.

The new footage appears to show substantial blade sections and numerous smaller fragments remaining within and around the incident area.

The Trustee does not suggest from the footage alone that no recovery, disposal or remediation work has occurred during the intervening period. Rather, the new footage is provided so that Central Highlands Water can consider the present visible condition against the matters first brought to its attention on 29 May 2026.

For completeness, information presently available to the Trustee places turbine YSTW23 approximately **2.5 kilometres in a straight line from Lal Lal Reservoir**.

Substantial rainfall has also occurred across the locality during the intervening period, including an approximately 42 mm rainfall event on 10 August 2026.

The Trustee does **not** assert that blade material or any contaminant has entered a drainage line, waterway or Lal Lal Reservoir.

Rather, the passage of time, intervening rainfall and continuing visible presence of dispersed blade material make it appropriate to obtain

Central Highlands Water's position as to whether these circumstances warrant consideration from a water-catchment, drainage or water-quality perspective.

Request for clarification

Having regard to the Trustee's unanswered correspondence of 29 May 2026 and the new footage now provided, would Central Highlands Water please clarify:

1. whether the Trustee's correspondence and original footage provided on 29 May 2026 were assessed by Central Highlands Water and, if so, the outcome of that assessment;
2. whether Central Highlands Water has made or received any enquiries or information concerning the YSTW23 blade failure and subsequent debris recovery;
3. whether the surrounding drainage environment and proximity of Lal Lal Reservoir have been considered by Central Highlands Water in connection with the incident;
4. whether the condition visible in the attached 27 August 2026 footage warrants any inspection, assessment, liaison with another authority, monitoring or other action within Central Highlands Water's functions; and
5. if Central Highlands Water considers that the incident does not engage any of its functions or responsibilities, whether it would please confirm that position for the administrative record.

Public documentary record

For completeness, the Trustee maintains the **Lal Lal Wind Farm Record**, which now includes a dedicated public record concerning the blade incident and brings together the original incident material, subsequent documentary chronology and later site-condition record:

<https://lallalwindfarmrecord.com.au/blade-removal-processing.html#y23-blade-failure-2026>

The public record is identified for Central Highlands Water's information and provides convenient access to the developing documentary record. It does not replace the new footage attached to this correspondence or the specific clarification sought from Central Highlands Water.

The Trustee would be grateful if this correspondence and the attached 27 August 2026 footage could be considered together with the material previously provided on 29 May 2026.

This enquiry is made for administrative, public-interest and record purposes. The Trustee makes no finding or allegation concerning contamination, environmental harm, water-quality impact or regulatory non-compliance. The purpose of this correspondence is to obtain Central Highlands Water's position concerning matters potentially falling within its own functions and responsibilities.

Kind regards,

LEWIS TROJAN HORSE PTY LTD (ACN 693 680 509)
as Trustee of the **Owen Robert Inter Vivos Trust**

On 29 May 2026, at 8:00 am, Owen R. <officeexecutorowenrobertlewis@gmail.com> wrote:

Dear Sir/Madam,

The Trustee refers to the blade failure incident associated with turbine YSTW23 at the Yendon section of the Lal Lal Wind Farm occurring on 15 May 2026.

The Trustee further refers to:

- enquiries issued by the **Beneficiary** in his private capacity concerning matters associated with the incident;
- Environment Protection Authority Victoria enquiry reference **ENQ231138**;
- acknowledgements and correspondence subsequently received from relevant authorities; and
- subsequent correspondence issued by the Trustee directly to Lal Lal Wind Farm following receipt of additional material provided by the **Beneficiary** for administrative and record purposes.

The Trustee notes that the additional material provided included video footage relating to the incident.

The Trustee further understands that the video footage was originally supplied to the **Beneficiary** by another individual prior to being provided to the Trustee.

Following receipt of the material, the Trustee sought clarification directly from Lal Lal Wind Farm concerning matters including:

- debris containment and recovery activities;
- assessment of surrounding land, drainage lines, or waterways;
- notification of relevant environmental or water authorities; and
- any associated environmental or public health assessment process.

The Trustee notes that Lal Lal Wind Farm subsequently issued general correspondence concerning the incident and operational response. However, as at the date of this correspondence, the Trustee remains unclear whether the specific matters identified above have been substantively clarified or remain under active consideration.

The Trustee therefore considers it appropriate, for limited public-interest, administrative, and record purposes only, to provide the attached video footage to your offices.

The Trustee makes no representation as to the precise condition of the site or the status of any remediation, recovery, containment, environmental, operational, or regulatory activity associated with the incident.

However, having regard to:

- the apparent extent of debris dispersion depicted within the material;
- the proximity of surrounding land and drainage environments associated with the area; and
- the absence of present clarification available to the Trustee concerning any assessment, recovery, containment, or associated

notification process,

the Trustee respectfully enquires whether the attached material:

- alters or informs the present understanding of the incident held by your respective offices;
- is anticipated to give rise to any further assessment, liaison, or engagement process; or
- is considered to warrant any further community, environmental, or administrative information process.

The Trustee further notes that documentary material previously disclosed through Environment Protection Authority Victoria Freedom of Information processes has referred to an earlier turbine blade incident within the Yendon section of the Lal Lal Wind Farm and associated recovery or disposal activities relating to blade material.

This correspondence is provided for information, public-interest, and record purposes only.

The Trustee makes no allegation and asserts no finding concerning the incident or any associated operational, environmental, or regulatory matter.

Kind regards,

LEWIS TROJAN HORSE PTY LTD
(ACN 693 680 509)
as Trustee of the **Owen Robert Inter Vivos Trust**

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